Constitutional Law — Right to Property

Art. 19(1)(f), Art. 31, Art. 300A & Eminent Domain

Lecture notes compiled from the class transcript

Colour key — plain text = lecture content as the professor stated it; italics = his informal asides, jokes and anecdotes; ⚠ Check = points to verify before citing (Section 14).

- Lecture content
- Professor's informal aside (italics)
- Key rule / definition / answer
- Political aside (his opinion, unverified)
- Question / homework / student answer
- Check before citing

1. Snapshot

- Article 19(1) now has clauses (a), (b), (c), (d), (e) and (g). Clause (f), the Right to Property, is missing because the **44th Constitutional Amendment** (Morarji Desai government) removed it. **Article 31** was removed along with it.
- Property protection now sits in **Article 300A**: 'No person shall be deprived of his property save by authority of law.'
- Property is no longer a Fundamental Right, but that does not mean anyone can seize it. The State can acquire property only on three conditions (the professor's framework): **(1) law, (2) public purpose, (3) compensation**.
- Practical difference after the move out of Part III: **Article 13 no longer applies** to property laws.
- Key case: *State of West Bengal v. Bela Banerjee* (1954). Key statute: the 2013 land acquisition Act. Concept: **Eminent Domain**.

2. The opening puzzle: where is Art. 19(1)(f)?

- Article 19(1) lists (a), (b), (c), (d), (e), (g). The professor asked: did Dr. Ambedkar not know the sequence of letters, or did a typist err? He noted the Constitution was **handwritten, not typed**, 'for the convenience of all'.
- A student said (f) existed earlier. Answer: it was **deleted** (omitted) later. Clause (f) was the Right to Property.
- The deletion was made by the **44th Constitutional Amendment**, brought by the **Morarji Desai government**. Both **Art. 19(1)(f)** and **Art. 31** were removed.
- *Running joke: he said everyone trusts that if anybody can make a mistake it is him, so he could 'guarantee' it wasn't his error, but had 'no confidence' in Dr. Ambedkar. He then teased that 'Congress party', then 'Gen Z', had 'deleted' the Constitution.*
- *Banter: when a student answered back with a question he said 'Gen Z aise hote hain'. The student told him 'Aap sahi insaan ho, sir'; he replied he was not, and that he would scold both those who answered and those who were studying.*

3. Does losing 19(1)(f) mean there is no right to property?

- Professor's test question: if the Right to Property is gone, can I snatch her iPad or my neighbour's pen? **No.**

- Student view: before the amendment, a person had an absolute Right to Property that was often challenged by the State because the State had problems acquiring land. Now the State can take property, but **with conditions / reasonable restrictions**.
- Professor's reply: the same limits existed earlier too. The real difference is political: **Fundamental Rights are better protected and cannot be taken away easily.**
- Closing point of the lecture: abolishing both provisions does **not** mean an individual can take someone's property. Neither the State nor individuals have an unchecked right; the State may act only in public interest on the three conditions below.

4. Why was it removed? Background

- When property was a Fundamental Right there was **heavy litigation**.
- Professor's account: this was 'settled' by *Kesavananda Bharati*. If property was taken in public interest and placed in the **Ninth Schedule**, it was beyond judicial reach. ⚠ **Check**
- The Ninth Schedule came through the **First Constitutional Amendment**. The trigger was the case of the **Maharajadhiraja of Darbhanga (Bihar)**. He named it as 'Kamta Prasad…'. ⚠ **Check**
- Controversies and cases continued. Finally a **13-judge Constitution Bench** held the First Amendment absolutely valid. Meaning: property can be taken by **Constitutional Amendment**, and placing it in the Ninth Schedule makes it much more secure.
- Even so, the Morarji Desai government decided, to **avoid future litigation**, to remove Art. 19(1)(f) and Art. 31.

5. Homework question: why two provisions?

- **Question:** once Art. 19(1)(f) existed, what was the need for Art. 31? Why was the Right to Property mentioned in the Constitution in two places?
- *He said 'two homeworks' but only this one is captured in the transcript.*
- **Student answer 1:** 19(1)(f) protected citizens' rights against government overreach; Art. 31 let the government take property for **social and economic reforms** if needed.

Professor's gloss on 'social' and 'economic':

- **Social reform** = removing social discrimination (upper/lower caste, Hindu, Muslim, Christian, etc.).
- **Economic reform** = removing economic discrimination (rich vs poor).
- *Illustrations: an upper-caste girl keeping a lower-caste boy at a distance ('such a big hate'); a crorepati who will never treat a poor man as an equal; a person travelling fully air-conditioned who won't seat a sweaty traveller next to him.*

Dr. Ambedkar's point (as the professor presented it):

- Until there is **economic equality**, there will be no unity in the country.
- 'We are going to start a life of contradictions.' Politically each person gets **one person, one vote** (political equality), but without **social and economic equality** society will not be happy and **freedom will not last long**.
- He said he had perhaps read this sentence to the class earlier. *He scolded students who did not remember it: 'Paani peena hai, padhna nahi!'*

- *Crime illustration: nobody wants to be a thief. If honest effort fails to pay, crime looks rational: snatching a mobile and selling it brings ₹30,000, while labour brings about ₹15,000 a month; two snatchings a month give ₹60,000.*

Hohfeld and correlative duty:

- Where there is a right there is a **corresponding (correlative) duty**. Without a corresponding duty, a right cannot be created. (He referred to **Hohfeld** from jurisprudence / legal methods.)
- Example: your right to study the Constitution means someone has a duty to teach it.
- So when Art. 19(1)(f) gave a citizen a Fundamental Right to property, the **State acquired the duty** not to take it. Then why was Art. 31 needed separately?
- A student mentioned a Punjab case and a later amendment. The professor suggested **Golaknath**, then set it aside: Golaknath had been **overruled in Kesavananda Bharati**, and the amendment in question came after that.

Professor's answer:

- **Art. 19(1)(f)** was the citizens' right to property.
- **Art. 31** was, in a way, the **State's right to acquire** property, and it also restricted the State's right. ⚠ **Check**
- The two pulled in opposite directions (the State is given power to take property while citizens are told it cannot be taken), creating a **contradiction and confusion**. So both were **abolished**.

6. Eminent Domain

- Spelling: **E-M-I-N-E-N-T D-O-M-A-I-N**.
- Student's definition: the inherent power of the government to take private [property] (the sentence was not completed on record).
- Professor: it is a **sovereign principle** of the State. Even if Art. 31 had not been written, the State would still have been entitled to take property under this principle.
- *He admitted he does not remember what the Latin words mean ('Latin words, I forget') and openly said he doesn't know, telling students to look it up. He said some teachers are scared of new things in class; he isn't, and students don't mind. He joked about 'Domino pizza' and warned students not to write 'pizza' in exams.*

Three conditions before the State can take property:

1. **Law**: there must be a law authorising acquisition.
2. **Public purpose**: property cannot be taken for private benefit.
3. **Compensation**: payment is required; property cannot just be taken.

- How the class reached them: a student offered 'proper procedure', then 'fair procedure'. The professor said procedure is covered by law / public purpose. A student then supplied **fair compensation**, which he linked to **economic interest**.
- Example: a village's land acquired under a law, for a public purpose, with compensation, is valid. *If a politician built a personal farmhouse on it, the acquisition would be illegal and cancelled, even if compensation had been paid.*

7. Art. 300A and what changed by leaving Part III

- Student read it out; the professor repeated: 'No person shall be deprived of his property save by authority of law.' ⚠ **Check** (he said 'with' the authority).
- The three conditions above are now **shifted to Art. 300A** (professor's statement). ⚠ **Check**
- **Question:** what difference does it make that the right moved from Part III (Art. 31) to Art. 300A? Can the State take property? Students said yes, the State can. Professor: that was true under Art. 31 as well.
- **Answer:** property is now a **constitutional right, not a Fundamental Right**, so **Article 13 does not apply**.
- **Art. 13:** if any law abridges Fundamental Rights, it shall be **void**.
- Before the change, taking property had to pass this test, and states faced a major difficulty. Taking a Fundamental Right required a **Constitutional Amendment**, which a state cannot make (example: Maharashtra setting up an NLU cannot amend the Constitution). The grounds on which property could be taken were also not specified.
- Now that Art. 13 no longer applies, an ordinary law can **survive independently**. He said this is the only real difference, 'aur zyada fark nahi hai'.
- Student noted that litigation on Fundamental Rights used to drag on; now it is somewhat easier.

8. Compensation

- **Meaning:** by dictionary meaning, compensation means the person is put back in the same position after being compensated; it should be equal to what was lost.
- **'Amount' substitution:** the Indira Gandhi government replaced the word **'compensation' with 'amount'** in Art. 31. He was unsure of the number ('17th or 25th... I believe 25th'). With 'amount', the State could pay anything (example: ₹10 for 100 acres and say an amount was paid). ⚠ **Check**
- *He jibed that this amendment came from 'the party that is saving the Constitution'.*
- **Bela Banerjee:** *State of West Bengal v. Bela Banerjee* (1954). The professor's account: the Supreme Court held the word 'amount' **unconstitutional** and that **compensation has to be paid, just and equivalent to market value, i.e. the full money**. ⚠ **Check** (chronology)
- He recommended reading the original case: 'maza aayega'. *Almost no one teaches Art. 31 today.*

The 2013 Act

- Enacted in 2013 by the Congress-led government, shortly before the 2014 election (he noted elections were coming in '14). Students gave the name in part: 'Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement' (full title in Section 14).
- A student said compensation became **2x in cities and 4x in villages** (market value-based); the professor accepted this.
- Professor's view: the Act was designed so that the next government could not function easily. *He argued that the same party that diluted 'compensation' to 'amount' in power raised it fourfold when it expected to lose. See Section 13.*
- *He said the present government pays the multiple and highways are still built, so farmers now ask for highways to pass through their land. A student countered that in his city **500+ cases** are pending and roads aren't getting built; the professor said courts delay things, but extra payment gets roads built.*

Personal anecdote: land for NLU Assam

- *The professor was a party to a case on land for the National Law University in Assam (some land was controversial, acquired in 2011). Some farmers had accepted old rates; others demanded 2013-Act rates. Strictly, the Act could not apply retrospectively.*
- *The Chief Justice was liberal, called the Chief Secretary and asked for a note-sheet to pay, otherwise litigation would delay the NLU for 50 years. The Executive Council decided to give benefits retrospectively at the increased rates, to all farmers, including those who had not protested (his illustrative numbers: ₹10 vs ₹40).*
- *He named the Chief Justice as 'Ajit Kumar from Madhya Pradesh', and said he is perhaps now in Odisha (name as given in the transcript).*
- *Lesson he drew: a benefit can be given retrospectively; there is no point fighting when litigation costs more than the amount in dispute. He said the university struggled since 2016 to get the land and added that students 'came in AC' and did not know it.*

9. Case digression: Ratlam (Justice Krishna Iyer)

- Raised as a case about the cost of fighting litigation versus complying. The professor asked if any student was from Ratlam.
- **Facts (as narrated):** a colony in Ratlam suffered stench and filth from the municipality's dumping and from a drain / stagnant water. Residents asked for cleaning. The municipality said **it had no funds**.
- A citizen went to the **Executive Magistrate** (nuisance); the Magistrate ordered cleaning. The municipality appealed up the ladder: **District Judge → High Court (single judge) → Division Bench → Supreme Court**. Each ordered cleaning. ⚠ **Check**
- **Supreme Court (Krishna Iyer, J.):** a public authority **cannot plead lack of funds** to avoid its duty; it must do it.
- *His colourful retelling: Krishna Iyer asked how much the municipality spent on litigation, whether officials flew first-class to Delhi, and which hotel they stayed in. Then he pointed to people ordering four plates of sabji and beer on the bill. This is the professor's embellishment of the story, not a record of the judgment.*
- *He praised Ratlam citizens for fighting to the Supreme Court, though he said he himself does not believe in litigation. Then he asked students where 'New Road' and 'Do Batti' are.*
- *'Meri problem ye hai ki mujhe har topic pe ek case yaad aata hai.' He said this is why people sometimes take offence.*

10. Land use, insider information and a family anecdote

- **Question:** the professor asked how the 'Jijaji ghotala' (his term for the allegations about Robert Vadra's land deals) worked in property. **Student:** he acquired many properties and factories at very cheap rates.
- **Professor's analysis:** buying is anyone's right; a farmer who sold cheap was not forced. The problem is **insider information**: the **government makes the development plan**, so only those with the file know an area will be developed, and then buy when prices are low.
- **Change in land use (CLU):** farmland is cheap, but once the land use is changed to factory / IT sector, its value rises **thousands of times**.
- He called this fraud on the public and **insider trading** (a Company Law concept). *Allegation as voiced by the professor, not a legal finding. He added: 'BJP bhi karti hogi, I don't say BJP nahi karti. Sab karte hain,' but the one who gets caught gets the bad name.*

- *Family anecdote: his brother ('bhai sahab'), in Rewa, was told by a well-connected person that a bypass was coming and to buy land. He bought for thousands; got about ₹13 lakh compensation for roughly half the land (which he put at ₹70–75 thousand); the rest is worth crores; a building now brings about ₹1.5 lakh a month in rent. (Figures as he recalled them.)*

- *He mentioned having been to Chhattarpur and told by someone to buy property there ('Chhattarpur hi bacha hai kya?'); he joked he would invest immediately if ₹25,000 would turn into ₹500 crore.*

11. Conclusion of the lecture

- 19(1)(f) = the citizens' right to property; Art. 31 = the State's power to acquire (professor's framing). Both are now abolished.
- This does **not** mean property can be seized arbitrarily by individuals or by the State.
- The State may acquire property for **public interest** on three bases: **law, public purpose, compensation**.
- What counts as public interest is **generally decided by the government**; courts usually do not interfere.
- To do: read **Bela Banerjee** in the original; answer the 19(1)(f)-vs-31 homework.

12. Questions asked in the lecture, answered

Each question is answered the way the lecture's own context answers it. Where the standard legal record adds or differs, it is marked as an additional note or ⚠ Check.

Q1. Is clause (f) missing from Art. 19(1) because Dr. Ambedkar did not know the sequence, or did a typist err? Did the professor or Dr. Ambedkar make the mistake?

A. Neither. Clause (f), the Right to Property, did exist in Art. 19(1) and was later **deleted** by the **44th Constitutional Amendment** (Morarji Desai government). A typist error is not the explanation either, because the Constitution was **handwritten, not typed**. The jokes that 'Congress party' or 'Gen Z' deleted it were banter.

Q2. Should 'f' be there between (e) and (g)? Who deleted it, and why?

A. Originally yes; the sequence (a) to (g) was complete. It was removed together with Art. 31 by the Morarji Desai government through the 44th Amendment, to **avoid future litigation** over property as a Fundamental Right.

Q3. If the Right to Property was taken away, does that mean she has no right to hold property and I can snatch her iPad or pen on my whims?

A. No. Property ceased to be a Fundamental Right, but individuals have no power to take another's property, and neither does the State freely. The State may acquire property only for **public interest** on three conditions: **law, public purpose and compensation**. Art. 300A says no person shall be deprived of property save by authority of law.

Q4. Once Art. 19(1)(f) existed, why was the Right to Property also mentioned in Art. 31? Why two places, and why not one?

A. Per the lecture: **19(1)(f)** was the citizens' right to property, and by the rule of **correlative duty** (Hohfeld) it put a duty on the State not to take it. **Art. 31** was, in a way, the State's right of acquisition, which also restricted that right. One provision gave the State power to take property while the other said citizens' property could not be taken, a **contradiction and confusion**, so both were abolished.

⚠ Art. 31 is usually described as a safeguard against deprivation of property for persons; the 'State's right of acquisition' framing is the professor's.

Q5. What is 'social reform' and what is 'economic reform' (the student's answer for Art. 31)?

A. **Social reform** means ending social discrimination (upper/lower caste, Hindu, Muslim, Christian, etc.). **Economic reform** means ending economic discrimination between rich and poor.

Q6. What did Dr. Ambedkar say about economic equality?

A. He said, in the professor's words, 'We are going to start a life of contradictions': political equality of **one person, one vote** would be given, but without **social and economic equality** society would not be happy and freedom would not last long. Without economic equality there can be no unity in the country.

Q7. What happened in Punjab (the case a student half-remembered)?

A. The professor suggested **Golaknath** (the Punjab case). He then noted it had been **overruled by Kesavananda Bharati** and that the amendment under discussion came after that, so it was not the answer to the homework.

Q8. What is Eminent Domain? How is it spelled?

A. Spelled **E-M-I-N-E-N-T D-O-M-A-I-N**. It is the inherent power of the government to take private property (the student's definition, not completed on record). The professor called it a **sovereign principle**: even if Art. 31 had never been written, the State could still take property under it.

⚠ Additional note, not in the lecture: the term comes from the Latin *dominium eminens* ('supreme lordship'), associated with Grotius. The professor said he could not recall the meaning of the Latin.

Q9. What are the three conditions before the State can take property?

A. (1) A **law** authorising the acquisition; (2) a **public purpose** (not, for example, a politician's farmhouse); (3) **compensation**. Procedure was folded into law / public purpose, and compensation was linked to economic interest.

⚠ Art. 300A's text mentions only 'authority of law'; the three-condition formulation is the professor's.

Q10. What difference did it make that the right moved from Part III (Art. 31) to Art. 300A? Can the State then take property?

A. The State could take property under Art. 31 too, so that is not the difference. The difference is that property became a **constitutional right and not a Fundamental Right**, so **Art. 13 does not apply** (Art. 13 voids any law that abridges Fundamental Rights). A law on acquisition can now survive on its own, whereas earlier states struggled because taking a Fundamental Right needed a Constitutional Amendment, which a state cannot make.

Q11. Which government replaced 'compensation' with 'amount', and by which amendment?

A. The **Indira Gandhi government**. The professor was unsure of the number ('17th or 25th, I believe 25th'), so the lecture's answer is the **25th Amendment**. With 'amount' the State could pay any sum (for example ₹10 for 100 acres).

Q12. In which case was 'amount' held unconstitutional and compensation required? In which year?

A. **State of West Bengal v. Bela Banerjee**, **1954** (the year was given by a student). Compensation must be just and equivalent to market value.

⚠ Chronology: Bela Banerjee (1954) predates the 1971 'amount' amendment; see Section 14, point 3.

Q13. What is the full name of the 2013 Act, and how much compensation does it give?

A. *Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013* (students gave a shortened form). Per the students, compensation is **2x market value in cities and 4x in villages**, and the professor accepted this.

Q14. Who decides what is 'public purpose' or public interest?

A. Generally the **government** decides it, and the courts usually do not interfere.

Q15. What was the Ratlam case?

A. A colony in Ratlam suffered filth and stench from the municipality's dumping and drain; the municipality refused to clean, pleading **no funds**. Magistrate, appellate courts and finally the Supreme Court (Krishna Iyer, J.) ordered it to do so: a public authority **cannot plead lack of funds** to avoid its duty.

⚠ Usually cited as Municipal Council, Ratlam v. Vardhichand (1980); the tier-by-tier history is the professor's narration.

Q16. How did the 'Jijaji ghotala' work in property?

A. The student said he acquired many properties and factories at cheap rates. The professor's answer: buying is anyone's right and the farmer was not forced; the issue is **insider information** about the government's development plan plus **change in land use**, which raises value thousands of times. He called it insider trading.

⚠ This is the professor's characterisation of allegations, not a legal finding.

Asked but not answered in the lecture

- *'Gen Z kab se kab tak ke bachhe maane jaate hain?' was a rhetorical aside; he did not give an answer. The usual convention is birth years of roughly the late 1990s to early 2010s.*
- *He asked which film the Amitabh Bachchan paid-witness story came from, saying he did not know the name himself; no title was given in the transcript. The second 'homework' he mentioned is also not captured.*
- *'Which party brought this amendment?' (about 'amount') was answered by his own jibe: the party 'saving the Constitution', i.e. Congress under Indira Gandhi.*

13. Political asides (professor's personal views, not legal content)

These are opinions and allegations as voiced in class. They are included for completeness of the record, are unverified, and are not part of the legal syllabus.

- *Criticised Congress as seeking to take power 'from the streets' (Jantar Mantar) and said Rahul Gandhi was folding hands to Adani for investment in Karnataka and Telangana while attacking Modi over Adani.*
- *Remarked that the party 'saving the Constitution' had amended 'compensation' to 'amount'. Separately, in the Kejriwal passage he said such people are out to 'save the Constitution' yet are not resigning after losing (whom exactly he meant is not clear in the transcript).*
- *Criticised former Delhi CM Kejriwal over 'Sheesh Mahal' spending (he said ₹10 lakh curtains in a toilet) and alleged that expenses were split into 99-thousand / 9.9-lakh instalments to stay under spending limits. He compared this to how financial powers are tiered (himself, VC, Executive Council, Academic Council).*
- *Said roads in his home area were 'built' three times on paper under the Akhilesh Yadav government, which RTI showed.*
- *Praised Gadkari for paying compensation and building highways.*

14. Quick reference and accuracy checks

Items mentioned

- 44th Constitutional Amendment (omitted Art. 19(1)(f) and Art. 31; inserted Art. 300A)
- First Constitutional Amendment (Ninth Schedule); Darbhanga / Maharajadhiraja case

- *Kesavananda Bharati* (13-judge bench); *Golaknath* (overruled)
- *State of West Bengal v. Bela Banerjee* (1954)
- Ratlam case (Krishna Iyer, J.)
- 2013 land acquisition Act
- Art. 13 (laws abridging Fundamental Rights are void); Art. 300A
- Hohfeld (right and correlative duty)

⚠ Check before citing (the notes above follow the lecture; these are the points that need verification)

1. **Ninth Schedule and Kesavananda:** the Ninth Schedule was inserted by the First Amendment (1951). *Kesavananda Bharati* (1973, 13 judges) is the basic structure case. Later, *I.R. Coelho v. State of Tamil Nadu* (2007) held that Ninth Schedule laws enacted after 24 April 1973 are open to basic-structure review. So 'beyond judicial reach' is not the settled modern position.
2. **Darbhanga case name:** usually cited as *Kameshwar Singh v. State of Bihar*. The transcript says 'Kamta Prasad…'.
3. **'Amount' vs 'compensation' chronology:** *Bela Banerjee* (1954) came first and required just equivalent compensation. The 4th Amendment (1955) made adequacy of compensation non-justiciable, and the **25th Amendment (1971)** replaced 'compensation' with 'amount'. The lecture presents Bela Banerjee as the court's answer to 'amount'; chronologically it is the other way round.
4. **Art. 300A text:** official text is 'save by authority of law'. It speaks only of authority of law; the lecture's three-condition framework (law, public purpose, compensation) is the professor's formulation. For the current law, see cases such as *Jilubhai Nanbhai Khachar* (1995) and *K.T. Plantation* (2011).
5. **Art. 31 framing:** Art. 31 is usually described as a safeguard against deprivation of property for **persons**; the lecture framed it as the State's right of acquisition with restrictions.
6. **Ratlam:** the case is usually cited as *Municipal Council, Ratlam v. Vardhichand* (1980), not 'Municipal Corporation'. The tier-by-tier history in the lecture is the professor's narration; verify against the judgment.
7. **2013 Act full title:** *Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013*. The '2x city / 4x village' figures are the students' answers (market value multiplier plus solatium); check the Act's schedules.
8. **Ambedkar's 'life of contradictions':** this is from his concluding speech in the Constituent Assembly (25 November 1949); the professor paraphrased it and said 'start' rather than 'enter'.
9. **Transcription quirks:** names such as the Chief Justice, some students and place names are as they appear in the transcript. Numbers in the brother / NLU stories are the professor's own illustrative figures.